

26STCV04248 26STCV04248

County: los-angeles
Division: Civil Law and Motion
Department: 733
Hearing date: 2026-07-21
Motion: ATTORNEY VINCENT FILARDO, JR.'s APPLICATION TO APPEAR PRO HAC VICE
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Case Number: 26STCV04248 Hearing Date: July 21, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

INDUSTRIAL
BANK CO., LTD.SHENZHEN BRANCH,

Plaintiff,

vs.

CELIA WEN SUN a/k/a WEN SUN a/k/a CELIA SUN, VALLEY SG
LANDPLUS, LLC, METAINFINITY, INC., METANOVA, LLC, SAN YI US INVESTMENT
COMPANY, INC., HAZENS ROSEMEAD, LLC, BURGEON HOTEL GROUP CORP. and John Does
1-20,

Defendants.

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CASE

NO.: 26STCV04248

[TENTATIVE] ORDER RE:

ATTORNEY VINCENT FILARDO,

JR.'s APPLICATION TO APPEAR PRO HAC VICE

Dept. 733

8:30 a.m.

July 21, 2026

I.

INTRODUCTION

This is an action

to recover the value of numerous fraudulent transfers carried out by all of the Defendants in furtherance of their conspiracy with non-party Fuer Yuan ("Yuan"), the ringleader of an international fraud scheme designed to evade his multimillion-dollar debt obligations to Plaintiff. (Compl., ¶ 1.)

On February 6,

2026, Plaintiff Industrial Bank Co., Ltd. Shenzhen Branch ("CIB" or "Plaintiff") filed a complaint against Defendants Celia Wen Sun aka Wen Sun aka Celia Sun ("Sun"), Valley SG Landplus, LLC ("VSGL"), Metainfinity, Inc.,

("Metainfinity"), Metanova, LLC ("Metanova"), San Yi US Investment Company, Inc., ("San Yi"), Hazens Rosemead, LLC ("Hazens"), and Burgeon Hotel Group Corporation ("BHG") (collectively, "Defendants"), alleging causes of action for (1) Avoidance of Constructive Voidable Transfers Pursuant to UVTA, (2) Avoidance of Actual Voidable Transfers Pursuant to UVTA, (3) Avoidance of Voidable Transfers Pursuant to Common Law, (4) Constructive Trust, (5) Civil Conspiracy, (6) Aiding and Abetting, and (7) Unjust Enrichment.

On June 11, 2026,
Attorney Vincent Filardo, Jr. filed the instant application to appear pro hac vice on behalf of Plaintiff.

No opposition was
filed.

II. LEGAL STANDARD

Pro hac vice
admission in California is governed by California Rules of Court, Rule 9.40. To be admitted pro hac vice, one must be "a member in good standing of and eligible to practice before the bar of any United States court or the highest court in any state, territory, or insular possession of the United States." (California Rules of Court, Rule 9.40(a).) However, in no case shall an attorney appear pro hac vice if the attorney is a resident of California, regularly employed in California, or "regularly engaged in substantial business, professional, or other activities in the State of California." (Ibid.)

An attorney
seeking pro hac vice admission must file a verified application in both court and the State Bar of California establishing (1) [t]he applicant's residence and office address; (2) [t]he courts to which the applicant has been admitted to practice and the dates of admission; (3) [t]hat the applicant is a member in good standing in those courts; (4) [t]hat the applicant is not currently suspended or disbarred in any court; (5) [t]he title of court and cause in which the applicant has filed an application to appear as counsel; (6) [t]he title, the date of each application, and whether or not it was granted; and (7) [t]he name, address, and telephone number of the active member of the State Bar of

California who is attorney of record. (California Rules of Court, Rule 9.40(d).)

III.

DISCUSSION

The Court finds that

Mr. Filardo has fulfilled the requirements to appear pro hac vice on

behalf of Plaintiff.

Mr. Filardo's application establishes that he is an active member and in good standing with the State Bar of New York. (Filardo Decl., ¶ 3.) His application establishes that his residence and office are both in New York. (Id. ¶¶ 1-2.) He is not a resident of California nor is he regularly engaged in the practice of law in California. (Id. ¶ 6.) He is not currently suspended or disbarred by any court. (Id. ¶ 5.) The application also lists the courts to which he has been admitted to practice. (Id. ¶ 4.) Mr.

Filardo provides the name, address, and telephone numbers of the Counsel of Record, Yan Ge (State Bar #236566), Ellis E. Herington (State Bar #343085), and Yiren Yu (State Bar #341245), who are each an active member of the State Bar of California. (Id. ¶ 8.) Mr. Filardo has not filed an application to appear pro hac vice in the state of California in the last two years. (Id. ¶ 7.)

Mr. Yu also

provides that he has served the instant application upon the State Bar and paid the requisite filing fee. (Yu Decl., ¶ 6.)

IV.

CONCLUSION

Based on the foregoing, Mr.

Filardo's application to appear pro hac vice

is GRANTED.

Dated this 21st
day of July 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court